

**SUBSTITUTE FOR
SENATE BILL NO. 937**

A bill to amend 1987 PA 96, entitled
"The mobile home commission act,"
by amending sections 35, 41, 43, and 48 (MCL 125.2335, 125.2341,
125.2343, and 125.2348), sections 43 and 48 as amended by 2015 PA
40, and by adding section 30m.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 30m. (1) Except as otherwise provided under subsection**
2 **(7), an owner of a mobile home park or seasonal mobile home park**
3 **shall not make a final unconditional acceptance of an offer for the**
4 **sale or transfer of a mobile home park or seasonal mobile home park**
5 **without first notifying the residents of the mobile home park or**
6 **seasonal mobile home park and the department of the owner of the**
7 **mobile home park or seasonal mobile home park's intent to sell or**



1 transfer the mobile home park or seasonal mobile home park and
2 requesting that the residents notify the owner in writing within 60
3 days after receipt of the notice from the owner that they intend to
4 purchase the mobile home park or seasonal mobile home park. The
5 notice from the owner required under this subsection may be
6 accompanied by a confidentiality or nondisclosure agreement to be
7 signed by any person receiving the sale price, terms of sale, and
8 books and records of the mobile home park or seasonal mobile home
9 park. A confidentiality or nondisclosure agreement must not be
10 structured in a way that creates an unreasonable barrier to raising
11 money to purchase the mobile home park or seasonal mobile home
12 park.

13 (2) If the residents of the mobile home park or seasonal
14 mobile home park do not provide the written notice within the time
15 period described under subsection (1), the owner of the mobile home
16 park or seasonal mobile home park does not have any further
17 obligations under this section.

18 (3) If the residents of the mobile home park or seasonal
19 mobile home park want to purchase the mobile home park or seasonal
20 mobile home park, they must, within the 60-day period described
21 under subsection (1), send a written notice to the owner that they
22 have incorporated a homeowners' association or cooperative and
23 intend to purchase the mobile home park or seasonal mobile home
24 park. If the owner requires a confidentiality or nondisclosure
25 agreement, the residents must include the confidentiality or
26 nondisclosure agreement signed by any person receiving the sale
27 price, terms of sale, and books and records of the mobile home park
28 or seasonal mobile home park. On receipt of the written notice
29 described under this subsection, the owner shall provide the sale



1 price, terms of sale, and books and records of the mobile home park
2 or seasonal mobile home park to the homeowners' association or
3 cooperative incorporated by the residents of the mobile home park
4 or seasonal mobile home park. Within 45 days after the owner
5 provides the sale price, terms of sale, and books and records of
6 the mobile home park or seasonal mobile home park, the homeowners'
7 association or cooperative may provide a written offer to purchase
8 the mobile home park or seasonal mobile home park. The written
9 offer must include a proposed due diligence, financing, and closing
10 period and documentation that shows that the owners of more than
11 50% of the owner-occupied mobile homes in the mobile home park or
12 seasonal mobile home park support the offer and that the
13 homeowners' association or cooperative is working with a financing
14 entity to secure financing for the purchase of the mobile home park
15 or seasonal mobile home park and attests that the homeowners'
16 association or cooperative has the financial ability to operate the
17 mobile home park or seasonal mobile home park and would reasonably
18 be expected to qualify for licensure under this act. The owner must
19 consider the written offer and negotiate in good faith with the
20 homeowners' association or cooperative regarding a potential
21 purchase of the mobile home park or seasonal mobile home park. If
22 the homeowners' association or cooperative does not provide a
23 written offer to purchase the mobile home park or seasonal mobile
24 home park after the owner provides the sale price, terms of sale,
25 and books and records of the mobile home park or seasonal mobile
26 home park, the owner has no further obligation under this section.

27 (4) If an owner requires a confidentiality or nondisclosure
28 agreement and the residents of the mobile home park or seasonal
29 mobile home park disclose information in violation of the



1 confidentiality or nondisclosure agreement, the owner is no longer
2 required to comply with this section.

3 (5) Notice required under this section must be made by
4 certified mail, return receipt requested.

5 (6) A resident of a mobile home park or seasonal mobile home
6 park who alleges that an owner of a mobile home park or seasonal
7 mobile home park failed to comply with this section may bring an
8 action in a court of competent jurisdiction to recover actual
9 damages incurred as a result of a violation of this section. The
10 court may award a civil fine of not less than \$10,000.00 but not
11 more than \$250,000.00. The court shall consider the severity of the
12 violation and the total sales price of the mobile home park or
13 seasonal mobile home park in determining the civil fine imposed
14 under this subsection. The civil fine imposed under this subsection
15 is the sole and exclusive remedy for a violation of this section.
16 The failure of an owner of a mobile home park or seasonal mobile
17 home park to comply with this section does not affect the sale or
18 transfer of the mobile home park or seasonal mobile home park, or
19 constitute grounds to set aside the sale or transfer of the mobile
20 home park or seasonal mobile home park.

21 (7) An owner of a mobile home park or seasonal mobile home
22 park is not required to give the notice as described under
23 subsection (1) or comply with this section if any of the following
24 apply:

25 (a) A bank, mortgage company, or any other mortgagee has
26 foreclosed on the mobile home park or seasonal mobile home park and
27 the bank, mortgage company, or any other mortgagee does either of
28 the following:

29 (i) Sells the mobile home park or seasonal mobile home park at



1 a foreclosure sale.

2 (ii) Sells the mobile home park or seasonal mobile home park
3 after purchasing the mobile home park or seasonal mobile home park
4 at a foreclosure sale.

5 (b) The sale or transfer of the mobile home park or seasonal
6 mobile home park is to a family member of the owner of the mobile
7 home park or seasonal mobile home park or a trust of which the
8 beneficiaries are family members of the owner of the mobile home
9 park or seasonal mobile home park.

10 (c) The sale or transfer of the mobile home park or seasonal
11 mobile home park is by a partnership to 1 or more of its partners.

12 (d) The conveyance of an interest in the mobile home park or
13 seasonal mobile home park is incidental to the financing of the
14 mobile home park or seasonal mobile home park.

15 (e) The sale or transfer of the mobile home park or seasonal
16 mobile home park was made in accordance with an eminent domain
17 order.

18 (f) The sale or transfer of the mobile home park or seasonal
19 mobile home park is among members of a limited liability company
20 that have been members of the limited liability company for at
21 least 1 year.

22 (g) The sale or transfer of the mobile home park or seasonal
23 mobile home park is to a parent, subsidiary, or affiliate of the
24 owner of the mobile home park or seasonal mobile home park, if the
25 owner of the mobile home park or seasonal mobile home park is a
26 company.

27 (8) An owner of a mobile home park or seasonal mobile home
28 park shall not accept or conditionally accept an offer for the
29 sale, lease, or transfer of the mobile home park or seasonal mobile



1 home park that contains any provision preventing or penalizing the
 2 owner of the mobile home park or seasonal mobile home park for
 3 entering into a purchase agreement with a homeowners' association
 4 or cooperative incorporated by the residents.

5 (9) This section does not allow a resident of a mobile home
 6 park or seasonal mobile home park to attach the civil fine imposed
 7 under this section to the mobile home park or seasonal mobile home
 8 park sold or transferred in violation of this section.

9 Sec. 35. (1) A person ~~who~~**that** applies for a license **to own a**
 10 **mobile home park or seasonal mobile home park** or a construction
 11 permit under this act, ~~which is for~~ other than a domestic
 12 corporation, shall file with the ~~commission,~~**department**, in a form
 13 the ~~commission~~**department** prescribes, an irrevocable consent **to**
 14 **service of process** appointing the ~~commission~~**department** to be ~~its~~
 15 **the person's** attorney to receive service of lawful process in any
 16 noncriminal action or proceeding against ~~it or its~~**that person or**
 17 **that person's** successor, executor, or administrator, ~~which~~**that**
 18 arises under this act or a rule promulgated or order issued under
 19 this act after the consent **to service of process** is filed. **7**
 20 **Service of process under this subsection applies** with the same
 21 force and validity as if served personally on the person filing the
 22 consent **to service of process**.

23 (2) When a person, including a nonresident of this state,
 24 engages in conduct prohibited or made actionable by this act or a
 25 rule promulgated or order issued under this act, whether or not
 26 consent to service of process was filed and personal jurisdiction
 27 over ~~him or her~~**that person** cannot otherwise be obtained in this
 28 state, **engagement in** that conduct ~~shall be~~**prohibited or made**
 29 **actionable by this act or a rule promulgated or order issued under**



1 **this act is** considered equivalent to ~~his or her~~ **the person's**
 2 appointment of the commission to be ~~his or her~~ **the person's**
 3 attorney to receive service of lawful process in a noncriminal
 4 action or proceeding against ~~him or her or his or her~~ **that person**
 5 **or the person's** successor, executor, or administrator. ~~which grows~~
 6 ~~out of that conduct and which is brought under this act or a rule~~
 7 ~~promulgated or order issued under this act,~~ **Service of process**
 8 **under this subsection applies** with the same force and validity as
 9 if served on the person personally.

10 (3) Service **of process** under subsection (1) or (2) may be made
 11 by filing a copy of the process in the office of the commission
 12 together with a \$25.00 fee. The service is not effective unless ~~the~~
 13 ~~plaintiff, which may be the commission in an action or proceeding~~
 14 ~~instituted by it,~~ immediately sends notice of the service and a
 15 copy of the process **within 5 days of the receipt of the process,** by
 16 registered or certified mail to the ~~defendant or respondent at his~~
 17 ~~or her~~ last known **Michigan address of the defendant or respondent**
 18 or takes other steps ~~which that~~ are reasonably calculated to give
 19 actual notice ~~, and the plaintiff's to the defendant or respondent.~~
 20 **The commission shall file an** affidavit or **other proof of** compliance
 21 with this section ~~is filed in the case on or before the return day~~
 22 of the process, if any, or within such further time as the court
 23 allows.

24 Sec. 41. **(1)** The department, a prosecuting attorney, or
 25 municipal attorney may bring an action in a court of competent
 26 jurisdiction against a person to enjoin that person from engaging
 27 or continuing in a violation of this act ~~, or~~ a rule promulgated
 28 under this act.

29 **(2) If an owner of a mobile home park or seasonal mobile home**



1 park owns the mobile home park or seasonal mobile home park without
 2 a license and does not have a complete application for a license
 3 pending with the department, any individual residing in the mobile
 4 home park or seasonal mobile home park may, subject to subsection
 5 (3), bring an action in a court of competent jurisdiction for
 6 injunctive relief, damages, or attorney fees and costs. If the
 7 court finds that the owner of a mobile home park or seasonal mobile
 8 home park owns the mobile home park or seasonal mobile home park
 9 without a license and that a complete application for a license is
 10 not pending with the department before the filing of the action,
 11 the court may do any of the following:

12 (a) Order an injunctive relief. Injunctive relief under this
 13 subdivision includes, but is not limited to, any of the following:

14 (i) Issuing a permanent or temporary injunction or restraining
 15 order to enforce the licensing provisions of this act.

16 (ii) Issuing a declaratory judgment that owning a mobile home
 17 park or seasonal mobile home park without a license violates this
 18 act.

19 (iii) Enjoining the owner of a mobile home park or seasonal
 20 mobile home park from owning a mobile home park or seasonal mobile
 21 home park without a license.

22 (b) Award statutory damages of not more than \$10,000.00 or
 23 penalties as described under section 42, and attorney fees and
 24 costs.

25 (3) Before commencing an action under this section, the
 26 individual must provide the owner of the mobile home park or
 27 seasonal mobile home park with a written notice of action on the
 28 claim. The notice of action required under this subsection must
 29 include all of the following statements:



1 (a) That, based on the information obtained from the
2 department's mobile home park database, the individual has a good-
3 faith belief that the owner of the mobile home park or seasonal
4 mobile home park owns the mobile home park or seasonal mobile park
5 without a license and has not submitted a complete license
6 application to the department in accordance with this act.

7 (b) That the owner of the mobile home park or seasonal mobile
8 home park has 30 days from the date of receipt of the notice of
9 action to provide the individual with evidence that the owner of
10 the mobile home park or seasonal mobile home park owns the mobile
11 home park or seasonal mobile home park with a valid license or has
12 a complete license application pending with the department.

13 (c) That, if the owner of the mobile home park or seasonal
14 mobile home park fails to provide the information described under
15 subdivisions (a) and (b), the individual may file an action in a
16 court of competent jurisdiction as provided under this section.

17 (4) The notice of action required under this section must be
18 delivered by personal service or sent by registered or certified
19 mail, return receipt requested.

20 (5) If, after the filing of an action in accordance with this
21 section, an owner of a mobile home park or seasonal mobile home
22 park submits a complete license application to the department, the
23 court may issue injunctive relief or award damages or attorney fees
24 and costs as described under this section.

25 (6) If a court awards damages under this section, the court
26 shall order the plaintiff to disburse any money awarded in damages
27 among all residents of the mobile home park or seasonal mobile home
28 park on a pro rata basis, on receipt of the funds.

29 (7) If an individual files an action in accordance with this



1 section against an owner of a mobile home park or seasonal mobile
 2 home park and obtains monetary compensation under this section that
 3 is distributed in accordance with subsection (6), that individual
 4 and a resident of the mobile home park or seasonal mobile home park
 5 that received money under this section shall not file any action
 6 under this section against an owner of the mobile home park or
 7 seasonal mobile home park for at least 12 months after the date of
 8 the judgment.

9 (8) If a person brings an action against an owner of a mobile
 10 home park or seasonal mobile home park alleging that the owner of
 11 the mobile home park or seasonal mobile home park owns the mobile
 12 home park or seasonal mobile home park without a license but it is
 13 determined that the person brought the action knowing that the
 14 owner of the mobile home park or seasonal mobile home park is
 15 licensed or has submitted a complete license application and did
 16 not follow the requirements of this section, the court may award
 17 costs or impose remedies in accordance with section 2591 of the
 18 revised judicature act of 1961, 1961 PA 236. MCL 600.2591 or MCR
 19 1.109(E).

20 Sec. 43. (1) If, after notice and a hearing as provided in the
 21 administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to
 22 24.328, a person is determined to have violated this act, the
 23 commission may ~~impose~~ **do any of the following:**

24 (a) **Impose** 1 or more of the following penalties:

25 (i) ~~(a)~~ Censure.

26 (ii) ~~(b)~~ Probation.

27 (iii) ~~(c)~~ License limitation.

28 (iv) ~~(d)~~ License suspension. The commission may request the
 29 appointment of a receiver when taking action under this



1 subdivision.

2 (v) ~~(e)~~ License revocation. The commission may request the
3 appointment of a receiver when taking action under this
4 subdivision.

5 (vi) ~~(f)~~ License denial.

6 (vii) An administrative fine of not more than \$5,000.00.

7 (viii) ~~(g)~~ A civil fine of not more than \$50,000.00.

8 (ix) ~~(h)~~ Restitution.

9 (b) Require posting financial assurance in the form of a bond,
10 cash deposit, or other financial arrangement and in an amount the
11 commission considers necessary to maintain or repair any
12 infrastructure or facilities of a mobile home park or seasonal
13 mobile home park to ensure the health, safety, and welfare of the
14 residents of the mobile home park or seasonal mobile home park.

15 (c) Request the appointment of a receiver. This subdivision
16 applies if the violation is the operation of a mobile home park or
17 seasonal mobile home park without a license issued by the
18 department and the department complied with the requirements of
19 subsection (2).

20 (2) If the department determines that a mobile home park or
21 seasonal mobile home park located in this state is owned by a
22 person that does not have a license issued by the department to own
23 that mobile home park or seasonal mobile home park, the department
24 shall provide written notice to the unlicensed owner of the mobile
25 home park or seasonal mobile home park. The department shall
26 forward a copy of the written notice provided to an unlicensed
27 owner of a mobile home park or seasonal mobile home park under this
28 subsection to the clerk of the city, village, or township where the
29 mobile home park or seasonal mobile home park is located. The



1 written notice provided under this subsection must require the
2 unlicensed owner of the mobile home park or seasonal mobile home
3 park to apply to the department for licensure within 30 days of the
4 date of the notice. If the unlicensed owner of the mobile home park
5 or seasonal mobile home park does not apply for licensure within
6 the 30-day period provided under this subsection, the department
7 shall commence proceedings to impose a fine on the unlicensed owner
8 of the mobile home park or seasonal mobile home park. If the
9 department determines that a person owned or owns a mobile home
10 park or seasonal mobile home park without a license as required
11 under section 16, the department shall impose a fine of not more
12 than \$250,000.00 after notice and a hearing as provided under the
13 administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to
14 24.328. The department shall advise the attorney general of the
15 failure of any person to pay any fine imposed under this section.
16 The attorney general shall bring a civil action in a court of
17 competent jurisdiction to recover the fine. In addition to the
18 written notice described under this subsection, the department
19 shall send a written notice to all identified lienholders of the
20 mobile home park or seasonal mobile home park notifying them that
21 the mobile home park or seasonal mobile home park is operating
22 without a license. The department may charge a fee of up to \$250.00
23 for identifying the lienholders if the owner of the mobile home
24 park or seasonal mobile home park has not informed the department
25 of all lienholders as required under this act. Notwithstanding
26 subsection (1)(c), the department, a local unit of government, or a
27 resident may request the appointment of a receiver.

28 (3) ~~(2)~~—A fine imposed under subsection (1) may be collected
29 by the imposition of a judgment lien by a court or by obtaining a



writ of garnishment against the person who has been determined to have violated this act. A writ of garnishment under this section must be issued by a court of competent jurisdiction and directed to this state or the state treasurer to satisfy the fine. To obtain a writ of garnishment under this subsection, the department must comply with the requirements of chapter 40 of the revised judicature act of 1961, 1961 PA 236, MCL 600.4001 to 600.4065. A fine collected under this section ~~shall~~**must** be deposited with the state treasurer and credited to the mobile home ~~code~~**license enforcement** fund created in section ~~9-16c~~.

(4) The department may not issue a license until the fees and any administrative fines previously assessed against the applicant and any person that holds a beneficial interest in the applicant's mobile home park or seasonal mobile home park by the department or commission that remain unpaid at the time of the license application, if applicable, are paid as provided under section 16(2)(c). The department shall advise the attorney general of the failure of any person to pay the fees or fines imposed under section 16. The attorney general shall, within 90 days of receiving notice from the department, bring a civil action in a court of competent jurisdiction to recover the fees or fines.

(5) ~~(3)~~ If the department determines that the owner or operator of a mobile home park or seasonal mobile home park has violated this act or rules promulgated under this act by failing to maintain or repair any infrastructure or facilities of the mobile home park or seasonal mobile home park, the department shall give notice of the determination by personal service or first-class mail to the local governments where the mobile home park is located ~~7~~ **and the owner , the operator, of the mobile home park or seasonal**



1 **mobile home park** and, if financial assurance in the form of a bond
 2 has been posted under ~~rules promulgated under section 16(2), 16,~~
 3 the surety executing the bond. **If the department determines that a**
 4 **mobile home park or seasonal mobile home park has violated this act**
 5 **or rules promulgated under this act in a manner that causes a**
 6 **material deficiency, the department shall give notice of that**
 7 **determination to all secured parties by personal service or first-**
 8 **class mail, and by email, if available.** If the owner ~~, operator, of~~
 9 **the mobile home park or seasonal mobile home park** or surety does
 10 not perform or commence the specified maintenance or repair within
 11 60 days after service of the notice, the department or its
 12 authorized representative may enter the mobile home park or
 13 seasonal mobile home park and perform the specified maintenance or
 14 repair. At the request of the owner ~~, operator, of the mobile home~~
 15 **park or seasonal mobile home park** or surety, the department may
 16 grant an extension of up to an additional 90 days. The owner ~~or~~
 17 ~~operator, of the mobile home park or seasonal mobile home park~~ and
 18 any surety are jointly and severally liable for all expenses
 19 incurred by the department or its authorized representative in
 20 performing the specified maintenance or repair. The department
 21 shall certify the claim to the owner ~~, operator, of the mobile home~~
 22 **park or seasonal mobile home park** and any surety, listing in the
 23 claim the items of expense in performing the maintenance or repair,
 24 and shall draw on any financial assurance for the payment of the
 25 claim. The department shall notify the local government where the
 26 mobile home park **or seasonal mobile home park** is located when the
 27 specified maintenance or repair has been completed.

28 **(6) (4)**—This section does not prohibit actions from being
 29 taken under other sections of this act.



1 (7) ~~(5)~~—The pursuit in court of the lawful rights of a
2 licensee does not constitute a violation of this act, regardless of
3 the outcome of the court action.

4 (8) If it is determined that an owner of a mobile home park or
5 seasonal mobile home park is unlicensed and there is no complete
6 license application under review by the department, the department,
7 lienholder, other affected person, or a resident of the mobile home
8 park or seasonal mobile home park may petition the circuit court in
9 the county in which the mobile home park or seasonal mobile home
10 park is located to appoint a receiver to operate the mobile home
11 park or seasonal mobile home park during the period in which the
12 owner of the mobile home park or seasonal mobile home park is
13 unlicensed. If the court finds that the owner of the mobile home
14 park or seasonal mobile home park is unlicensed and there is no
15 complete license application under review by the department, the
16 court shall appoint a receiver to operate the mobile home park or
17 seasonal mobile home park. The court shall determine the fair
18 compensation for the receiver. A receiver appointed under this
19 subsection must be a person currently licensed to own a mobile home
20 park or seasonal mobile home park in accordance with this act or a
21 person that meets the requirements for licensure under this act, as
22 determined by the court. A receiver may not be the owner of the
23 mobile home park or seasonal mobile home park, or a subsidiary,
24 immediate family member, agent, attorney, representative, employee,
25 or affiliate of the owner of the mobile home park or seasonal
26 mobile home park, or any other person that is responsible for the
27 day-to-day operation of the mobile home park or seasonal mobile
28 home park or is under common control of the mobile home park or
29 seasonal mobile home park with the owner of the mobile home park or



1 seasonal mobile home park. Subject to court approval, a receiver
2 appointed under this subsection shall do any of the following:

3 (a) Repair, renovate, or rehabilitate the mobile home park or
4 seasonal mobile home park as needed to make the mobile home park or
5 seasonal mobile home park comply with this act.

6 (b) Manage the mobile home park or seasonal mobile home park.

7 (c) Collect rent, utility service fees, and other fees from
8 the residents of the mobile home park or seasonal mobile home park,
9 as determined by the court, and pay the expenses of the mobile home
10 park or seasonal mobile home park that are necessary to ensure
11 continuing operation and services.

12 (d) Pursue necessary legal remedies against a resident of the
13 mobile home park or seasonal mobile home park that fails to pay
14 rent, utility service fees, or other fees or comply with this act.
15 Legal remedies that may be pursued against a resident of the mobile
16 home park or seasonal mobile home park under this subdivision
17 include, but are not limited to, the institution of summary
18 proceedings to recover possession of the premises from the resident
19 of the mobile home park or seasonal mobile home park.

20 (e) Exercise other powers the court considers proper to the
21 effective administration of the receivership including, but not
22 limited to, selling the park with court approval.

23 Sec. 48. (1) If the department orders the owner ~~or operator of~~
24 a mobile home park or seasonal mobile home park to correct a
25 violation of this act or rules promulgated under this act that
26 imminently threatens the health or safety of the residents of the
27 **mobile home park or seasonal mobile home** park or the public and the
28 owner ~~or operator~~ fails to comply with the order, the department or
29 the local government may bring an action to enforce the applicable



1 regulations and to abate or enjoin the violation.

2 (2) If the violation is not corrected and imminently threatens
3 the health or safety of the residents of the mobile home park or
4 seasonal mobile home park or the public, the department or the
5 local government may file a motion for a preliminary injunction or
6 other temporary relief appropriate to remove the threat while the
7 action is pending.

8 (3) The department or the local government shall serve a copy
9 of the complaint and a summons on each owner, **secured party**, and
10 lienholder of record ~~, and any operator,~~ of the mobile home park or
11 seasonal mobile home park that can be identified by the department
12 or the local government with the exercise of reasonable diligence.
13 The local government shall also file a notice of the action with
14 the register of deeds for the county where the **mobile home park or**
15 **seasonal mobile home** park is located.

16 (4) The court shall make orders and determinations consistent
17 with the objectives of this act. The court may enjoin the
18 maintenance of an unsafe, unhealthy, or unsanitary condition, or a
19 violation of the applicable regulations, and may order the
20 defendant to perform maintenance and repairs or make other
21 corrections including removal of a building or structure necessary
22 to abate the condition. The court may authorize the department or
23 the local government to perform maintenance or repairs or to remove
24 a building or structure owned or operated by the owner ~~or operator~~
25 of the mobile home park or seasonal mobile home park. However, the
26 court shall not authorize removal of a building or structure unless
27 the cost of repair of the building or structure will be greater
28 than the state equalized value of the building or structure.

29 (5) If the expense of maintenance, repair, or removal is not



1 ~~provided for by financial assurance under section 16(2)(b) or~~
2 otherwise provided for, the court may enter an order approving the
3 expense and place a lien on the real property for the payment of
4 the expense. The order may establish the lien as a senior lien,
5 except as to tax and assessment liens, and except as to a mortgage
6 of first priority recorded prior to all other liens of record. The
7 order may also specify the time and manner for foreclosure of the
8 lien if the lien is not satisfied. To perfect the lien, a copy of
9 the order ~~shall~~**must** be filed with the register of deeds for the
10 county where the mobile home park or seasonal mobile home park is
11 located within 10 days after entry of the order.

12 Enacting section 1. This amendatory act does not take effect
13 unless all of the following bills of the 103rd Legislature are
14 enacted into law:

15 (a) Senate Bill No. 934.

16 (b) Senate Bill No. 935.